

Farhan Rasool v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 November 2019 · Writ-C No. 38236 of 2019 · Writ - C No. 38236 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A consumer who disputes the correctness of an electricity bill and seeks certiorari against a recovery citation issued under section 5 of the U.P. Government Electricity Undertakings (Dues Recovery) Act, 1958, must take the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court declined to entertain the writ. An application filed within two weeks is to be decided by a speaking order after hearing within 30 days. Coercive action is stayed for 40 days or until that decision, whichever is earlier, but the stay lapses if the consumer does not apply in time.

FACTUAL SUMMARY

Farhan Rasool, a consumer, approached the Allahabad High Court to quash a Recovery Citation dated 25 September 2019. The citation followed a 10 July 2019 notice (letter ref. no. 3517/JC 2009-10) issued by respondent no. 3 under section 5 of the Uttar Pradesh Government Electricity Undertakings (Dues Recovery) Act, 1958, demanding Rs. 1,32,896 as electricity dues. He contended that the bill was incorrect. Counsel for the petitioner and the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy

HOLDING

A writ challenging a recovery citation for electricity dues, where the consumer disputes the correctness of the bill, will not be entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy; the consumer may approach the appropriate authority, which is to decide the application by a speaking order after hearing.

¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION DATED 25.09.2019

The Court did not examine the bill or the citation on merits and left the dispute to the Clause 6.5 authority. ¶ 3-5